572 U. S., at 723 (second alteration in original). In close cases such as this one, the inquiry may well involve a substantial amount of evidence, but that inquiry is nevertheless critical to avoid the "unacceptable risk that persons with intellectual disability will be executed" contrary to the Eighth Amendment. *Id.*, at 704.

* * *

In cases presenting multiple IQ scores, courts should continue to consider multiple IQ scores in light of this Court's precedents and "'the views of medical experts.'" *Moore*, 581 U. S., at 5. If a conflict among the States or lower courts emerges and a case properly presents the issue, it may be appropriate for this Court to weigh in with more specific guidance about the permissible method or methods by which courts must analyze such scores. The Court rightly decides that it is inappropriate to do so in this case. I therefore concur in the decision to dismiss the writ of certiorari as improvidently granted.

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JUSTICE THOMAS, dissenting.

In 1997, Joseph Clifton Smith murdered Durk Van Dam. The trial court, accepting the jury's recommendation, sentenced Smith to death. Smith lost his appeal in 2001. But a year later, in *Atkins* v. *Virginia*, 536 U. S. 304 (2002), this Court held for the first time that convicted murderers like Smith cannot be executed if they are deemed insufficiently intelligent, which the Court suggested would require that they had an IQ of 70 or below. *Id.*, at 308–309, and n. 3, 316–321. Such persons could not be executed, the Court said, even if they "know the difference between right and wrong," even if they "are competent to stand trial," and even if they are intelligent enough to deserve other "criminal sanctions." *Id.*, at 318. The Court did not pretend that the Constitution had ever been understood to impose such a rule. *Id.*, at 340–341 (Scalia, J., dissenting). Just 13 years earlier,

it had acknowledged the opposite. *Penry* v. *Lynaugh*, 492 U. S. 302, 330–335 (1989). But the Court set aside the Constitution and imposed a new rule anyway. The result was predictable: To avoid execution, Smith tried to convince courts that he is not intelligent enough to be executed.

Today, the Court rewards Smith's efforts. It dismisses the State's petition challenging the lower courts' vacatur of his death sentence under *Atkins*. But Smith is not insufficiently intelligent to be executed. He can read at an 11th-grade level. He took five IQ tests and did not once receive a score of 70 or below, instead scoring 75, 74, 72, 78, and 74. The lower courts held that he could not be executed based only on the hypothetical *possibility* that these IQ scores were all wrong and that his IQ is in fact 70 or below. I join JUSTICE ALITO's opinion because it persuasively explains why that approach is statistically indefensible.

As this case shows, though, *Atkins* has bred only confusion and absurdity. Nothing in the text or history of the Constitution supports *Atkins*. It should be overruled.

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I

A

In 1997, just two days after being released from custody for burglary, Joseph Clifton Smith murdered Durk Van Dam. Smith plotted with his friend Larry Reid to rob Van Dam, whom they heard was carrying cash. They lured Van Dam to an isolated location. There, Smith and Reid beat Van Dam and attacked him with a power saw, eventually killing him. Smith and Reid then divided the money that they stole from Van Dam. Smith told one person that he had hit Van Dam on the head and cut him, and he told another that he had hit, cut, and stabbed Van Dam.

The police discovered Van Dam's badly mutilated body in a wooded area. He had injuries from the saw on his neck, shoulder, and back. He also suffered a hemorrhage under his scalp, broken ribs, and brain swelling. The broken ribs

caused one of Van Dam's lungs to collapse. A forensic pathologist testified that 35 blunt-force injuries caused his death. He died trying to defend himself.

A jury convicted Smith of murdering Van Dam and recommended that he be sentenced to death. The trial court found three aggravating circumstances and no significant mitigating circumstances. The three aggravating circumstances were that Smith was on leave from his term of imprisonment for burglary at the time of the murder; that the murder occurred during a robbery; and "that the murder was especially heinous, atrocious, or cruel." *Smith* v. *State*, 795 So. 2d 788, 797, n. 1, 841–842 (Ala. Crim. App. 2000) (*per curiam*). As for mitigating circumstances, the trial court rejected Smith's arguments that his bad upbringing or lack of intelligence justified a sentence other than death. It explained that Smith's upbringing did not "'justify a[n] act of senseless rage directed at an innocent human being.'" *Id.*, at 841. And it found that Smith's "'lack of intelligence is not an excuse for murder, especially in the context of this case.'" *Ibid.* Smith "knew he had," in his words, "F—— Up," and, "while in control [of himself,] he savagely attacked" Van Dam. *Ibid.* (internal quotation marks omitted). The trial court accepted the jury's recommendation and sentenced Smith to death.

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The Alabama Court of Criminal Appeals affirmed the conviction and death sentence. *Id.*, at 842. Both the Supreme Court of Alabama and this Court denied certiorari. *Ex parte Smith*, 795 So. 2d 842 (2001); *Smith* v. *Alabama*, 534 U. S. 872 (2001).

B

A year later, this Court's decision in *Atkins* opened a new avenue for convicted murderers such as Smith to challenge their death sentences.

Atkins arose out of another robbery and murder. Daryl Atkins and a friend abducted and robbed a United States airman named Eric Nesbitt. 536 U. S., at 307; *id.*, at 338

(Scalia, J., dissenting). After abducting and robbing him, Atkins shot Nesbitt eight times, killing him. *Id.*, at 307 (majority opinion). The jury found Atkins guilty of capital murder. At the penalty phase, the jury heard "extensive evidence" of Atkins's "alleged mental retardation," including testimony from a psychologist that Atkins "was 'mildly mentally retarded'" with an "IQ of 59," and testimony from another psychologist who concluded that Atkins was "of 'average intelligence, at least.'" *Id.*, at 308–309; *id.*, at 338–339 (Scalia, J., dissenting). The jury also learned that Atkins had "16 prior felony convictions for robbery, attempted robbery, abduction, use of a firearm, and maiming." *Id.*, at 339. Atkins had previously attacked a different victim with a gun, "knocked her to the ground, and then helped her up, only to shoot her in the stomach." *Ibid.* After hearing all the evidence, the jury sentenced Atkins to death. *Ibid.*; *id.*, at 309 (majority opinion).

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This Court held that Atkins's sentence was unconstitutional "cruel and unusual punishment" under the Eighth Amendment. *Id.*, at 311, 321. The Court said that the Eighth Amendment prohibits all "'[e]xcessive' sanctions." *Id.*, at 311. Whether a punishment was excessive, the Court said, depended not on the "standards that prevailed . . . when the Bill of Rights was adopted," but on the "'evolving standards of decency that mark the progress of a maturing society.'" *Id.*, at 311–312 (quoting *Trop* v. *Dulles*, 356 U. S. 86, 100–101 (1958)). According to the Court, "the American public, legislators, scholars, and judges ha[d] deliberated" over whether "the death penalty should ever be imposed on a mentally retarded criminal" and decided that it should not. *Atkins*, 536 U. S., at 307, 313–317. The Court concluded that there was a "national consensus" against imposing the death penalty on the mentally retarded, largely because 18 States barred it. *Id.*, at 314–316. The Court itself agreed with this supposed "consensus"; it was "not persuaded that the execution of mentally retarded criminals will measurably

advance the deterrent or the retributive purpose of the death penalty." *Id.*, at 321.

The *Atkins* Court promised that it would allow States to define mental retardation. It admitted that there was "serious disagreement" about "determining which offenders are in fact retarded." *Id.*, at 317. Accordingly, the Court decided to "'leave to the State[s] the task of developing appropriate ways to enforce the constitutional restriction upon [their] execution of sentences.'" *Ibid.* So, despite the Court's holding that the Eighth Amendment forbids "the execution of mentally retarded offenders," whether an offender was "mentally retarded" would depend on state rules. *Ibid.*

Still, the Court suggested that someone with an IQ above 70 could not be mentally retarded for Eighth Amendment purposes. See *id.*, at 308, n. 3, 316–318; *Brumfield* v. *Cain*, 576 U. S. 305, 345–346 (2015) (THOMAS, J., dissenting). The Court drew from "clinical definitions of mental retardation" that include three necessary elements. *Atkins*, 536 U. S., at 318. First, the offender must have "'subaverage intellectual functioning'" based primarily on IQ tests. *Id.*, at 308, n. 3, 318. Second, he must have "significant limitations in adaptive skills such as communication, self-care, and self-direction." *Id.*, at 318. And third, these limitations must have manifested before age 18. *Ibid.* "'Mild' mental retardation," the Court explained, "is typically used to describe people with an IQ level of 50–55 to approximately 70." *Id.*, at 308, n. 3. Apparently drawing on that category's upper limit, the Court noted that "only five [States] ha[d] executed offenders possessing a known IQ less than 70 since" 1989. *Id.*, at 316. It was thereafter reasonable to understand *Atkins* to allow States to execute people with IQs above 70. See *Brumfield*, 576 U. S., at 345–346 (THOMAS, J., dissenting).

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C

In the years since, the Alabama courts have faithfully applied that understanding of *Atkins*. When called to imple-

ment it, they observed that other "states with statutes prohibiting the execution of a mentally retarded defendant require that a defendant, to be considered mentally retarded, must have significantly subaverage intellectual functioning (an IQ of 70 or below), and significant or substantial deficits in adaptive behavior" "before the defendant reached age 18." *Ex parte Perkins*, 851 So. 2d 453, 456 (Ala. 2002); see also *Ex parte Smith*, 213 So. 3d 214, 224 (Ala. 2003). Consistent with *Atkins*, the Alabama courts held that "[a]ll three factors must be met in order for a person to be classified as mentally retarded for purposes of an *Atkins* claim." *Smith* v. *State*, 213 So. 3d 239, 248 (Ala. 2007). And, consistent with *Atkins*, they held that the prisoner has the burden to prove that he is mentally retarded by a preponderance of the evidence. 213 So. 3d, at 252.

When it came to applying *Atkins* to Smith, the Alabama courts had no trouble recognizing that he did not satisfy the first requirement and therefore is not mentally retarded. The Court of Criminal Appeals explained that, by 2008, Smith had scored 75, 74, and 72 on three IQ tests. *Smith* v. *State*, 71 So. 3d 12, 19–20 (2008). Though his lowest score suggested that Smith's true IQ "could be . . . as low as 69" taking account of the error range for that score, it could also be "as high as 75." *Id.*, at 19. Smith asked the court "to apply that margin of error to conclude that . . . he is mentally retarded." *Id.*, at 20. But the court rejected that argument, which would require "expanding the definition of mentally retarded" to include people whose true IQ is likely above 70. *Ibid.*

Unable to persuade the Alabama courts that he was mentally retarded, Smith sought habeas relief in federal court, arguing that the Alabama courts unreasonably applied *Atkins*. See 28 U. S. C. §2254(d). The District Court initially denied habeas relief for the straightforward reason that the Court of Criminal Appeals did not act unreasonably when it refused to "reduc[e]" Smith's lowest "IQ score of 72 such that

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[it] would . . . fall within the mental retardation range." *Smith* v. *Thomas*, No. 05–cv–0474 (SD Ala., Sept. 30, 2013), ECF Doc. 59, pp. 61–62. Smith's own expert, the court explained, testified that his scores were at best *close* " 'to those individuals who would be considered mentally retarded' "—a conclusion that "is incompatible with a determination that Smith is mentally retarded himself." *Id.*, at 60 (emphasis deleted). And, the court observed, "every IQ test administered to Smith during his developmental period yielded an unadjusted score above the cutoff for mental retardation." *Id.*, at 61, n. 24.

The Eleventh Circuit disagreed. It thought that it was "unreasonable" to suppose that Smith did not have significantly subaverage intelligence. *Smith* v. *Campbell*, 620 Fed. Appx. 734, 750–751 (2015). The court ordered the District Court to give Smith a new hearing for reconsideration of his *Atkins* claim *de novo*. 620 Fed. Appx., at 751–752.

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D

Smith would go to his hearing armed with new decisions of this Court. In *Hall* v. *Florida*, 572 U. S. 701 (2014), this Court acknowledged that States can require defendants to show an IQ of 70 or below in order to establish that they are mentally retarded, but held that States must in some manner account for the test's standard error range. States may, "consistently with *Atkins*," define mental retardation to require an IQ of "70 points" or below if they consider "the IQ test's standard error of measurement." *Id.*, at 711–712. Under Florida's test, as the Court understood it, a prisoner with a single IQ score of 71 whose error range included 70 would be conclusively not mentally retarded even if "other evidence" suggested that his "true IQ" was in fact 70 or below. *Id.*, at 712, 713. The Court thought that this "strict IQ test score cutoff of 70" was impermissible because it "ignores the inherent imprecision of" IQ tests and "risks executing a person who suffers from intellectual disability." *Id.*, at 712–713, 723. *Hall* therefore held it unconstitutional

to treat as decisive a single above-70 score whose error range includes 70. *Id.*, at 723–724. In imposing this new constitutional rule, *Hall* relied on "medical experts" and "professional studies." *Id.*, at 709–710.

Hall did not tell courts what to do when low scores whose error ranges touch 70 are paired with multiple higher scores whose error ranges do not. The Court, as in *Atkins*, left States without guidance: "[T]he analysis of multiple IQ scores jointly is a complicated endeavor." 572 U. S., at 714. Exactly how courts should weigh multiple IQ scores remained unclear. See *id.*, at 742–743 (ALITO, J., dissenting).

The next two decisions further walked back *Atkins*'s promise to allow States to define mental retardation and instead outsourced the project to clinical practice. In *Moore* v. *Texas*, 581 U. S. 1 (2017) (*Moore I*), the Court reiterated that "courts must account for" a test's error range "where an IQ score is close to, but above, 70" because "other evidence" may show that "'[the] individual's true IQ score'" is 70 or less. *Id.*, at 13–15. The Court also told lower courts not to "overemphasiz[e] . . . perceived adaptive strengths" when considering whether the prisoner has "significant adaptive deficits" under the second element of the mental-retardation definition. *Id.*, at 15–16. And it criticized the use of factors under that element that invite "lay perceptions of intellectual disability" and "lay stereotypes" to guide the analysis. *Id.*, at 18. Then, in a second *Moore* v. *Texas*, 586 U. S. 133 (2019) (*per curiam*) (*Moore II*), the Court reaffirmed these additional restrictions. *Id.*, at 139–143. The Court in *Moore I* and *Moore II* based its conclusions, not on States' actual practices, as in *Atkins*, but "solely on what it deem[ed] to be medical consensus about intellectual disability." See *Moore I*, 581 U. S., at 22, 29 (ROBERTS, C. J., dissenting).

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E

After these decisions, Smith returned to the District Court. *Smith* v. *Dunn*, No. 05–cv–00474 (SD Ala., Aug. 17, 2021), ECF Doc. 135. Since the last hearing,

Smith's expert had administered a test on which Smith scored 78, making his claim of mental retardation even more implausible. App. 167, 218. The expert admitted that "78 is definitely above 70 to 75 IQ range" and indicates an IQ as high as 83. *Id.*, at 167, 218–219. In addition, another test his own expert administered indicated that Smith reads "at an 11th-grade level"—a result that the expert admitted is "not consistent" with mental retardation. *Id.*, at 228–229.

In 2017, the State's expert administered a fifth IQ test on which Smith, again, scored higher than 70. Smith scored a 74. Even in isolation, that score yielded a 90th percentile confidence level that Smith's IQ is 71 to 78. *Id.*, at 268. The State's expert also emphasized that Smith "show[ed] up at an 11th-grade level with regard to sentence comprehension," a fact that is "totally inconsistent with intellectual disability." *Id.*, at 285. Overall, both experts agreed that Smith's IQ scores over 35 years demonstrated a remarkably consistent pattern. *Id.*, at 167, 270. The IQ scores before the District Court were 75, 74, 72, 78, and 74.

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Nonetheless, the District Court found that Smith is mentally retarded and therefore that his death sentence was unconstitutional. ECF Doc. 135, p. 7. The court conceded that Smith's performance on the test the State's expert administered is "above what is considered significant subaverage intellectual functioning." *Ibid.* It further acknowledged that "multiple IQ scores . . . taken over a long period of time place him in the borderline range, functioning just above intellectual disability." *Ibid.* The court admitted that "this leans in favor of finding that Smith does not have significant subaverage intellectual functioning." *Ibid.* But it still did "not find it strong enough" to not move on to the second step of Alabama's mental-retardation test and address Smith's "adaptive deficits." *Ibid.* The District Court thought that Smith's scores left it "not clear" whether he was mentally retarded because his lowest score, 72, "*could*

mean his IQ is actually as low as 69." *Id.*, at 5, 10 (emphasis added). So the court moved on. Because of Smith's adaptive deficits, the court found that he has significant subaverage intellectual functioning. After concluding that Smith is mentally retarded, the court vacated his death sentence. *Id.*, at 4–13.

The Eleventh Circuit affirmed. *Smith* v. *Commissioner, Ala. Dept. of Corrections*, 67 F. 4th 1335 (2023) (*per curiam*). The court acknowledged that "[w]hether Smith has significantly subaverage intellectual functioning turns on whether he has an IQ equal to or less than 70." *Id.*, at 1345 (citing *Ex parte Perkins*, 851 So. 2d, at 456). Given that Smith had five IQ scores ranging from 72 to 78, one would have thought that this acknowledgment would have resolved the case against Smith. Nevertheless, the court reasoned that "a district court must move on to consider an offender's adaptive functioning when the lower end of his lowest IQ score is equal to or less than 70," no matter how many higher test results he has. 67 F. 4th, at 1346; accord, *id.*, at 1347. In other words, even if Smith had scored four 120s, a single 72 would allow the court to move on to the other mental-retardation factors. "Smith carried his burden under the intellectual prong," the court held, because he "needed to prove only that the lower end of his standard-error range is equal to or less than 70." *Id.*, at 1349.

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When Alabama petitioned this Court for certiorari, we granted the petition and vacated the Eleventh Circuit's judgment. *Hamm* v. *Smith*, 604 U. S. 1 (2024) (*per curiam*). The Court asked for clarification about the Eleventh Circuit's reasoning. *Id.*, at 2. On one reading, the Court thought, the Eleventh Circuit's decision "would suggest a *per se* rule that the lower end of the standard-error range for an offender's lowest score is dispositive." *Ibid.* Another reading, under which the decision would be more defensible, "would suggest a more holistic approach to multiple IQ scores that

considers the relevant evidence." *Ibid.* The Court then invited the Eleventh Circuit to clarify which of those two meanings it intended. *Id.*, at 2–3.

Taking the hint, the Eleventh Circuit clarified that it meant the more "'holistic approach to multiple IQ scores.'" *Smith* v. *Commissioner, Ala. Dept. of Corrections*, 2024 WL 4793028, *1 (Nov. 14, 2024) (*per curiam*). The court, again, upheld the District Court's analysis on the first element because the District Court "found that Smith's IQ scores could not rule out the *possibility* that Smith is intellectually disabled." *Id.*, at *3 (emphasis added). And, based on that reasoning, the court went on to conclude, not that Smith's true IQ is likely 70 or lower, but that it "*could* be less than or equal to 70." *Ibid.* (emphasis added).

This Court, again, granted certiorari. It appeared ready to decide "[w]hether and how courts may consider the cumulative effect of multiple IQ scores in assessing an *Atkins* claim." 605 U. S. 1001 (2025).

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Today, however, the Court dismisses the State's petition as improvidently granted, without explanation. The effect of the Court's failure, twice in this case, to bring clarity to precedents that manifestly "lac[k] clarity" is that Alabama will not be able to carry out its lawful sentence. *Moore II*, 586 U. S., at 143 (ROBERTS, C. J., concurring).

II

We should end the hopeless enterprise that this Court today shows it cannot control. Because nothing in the text and history of the Eighth Amendment justifies *Atkins*, it is demonstrably erroneous. And because we cannot favor decisions lying "outside the realm of permissible interpretation" "over the text of the Constitution," we should overrule *Atkins*. *Gamble* v. *United States*, 587 U. S. 678, 711–712 (2019) (THOMAS, J., concurring). *Atkins* also cannot survive this Court's more recent *stare decisis* criteria because it is

egregiously wrong, unworkable, and has created no legitimate reliance interests.

A

Atkins is demonstrably erroneous. It is irreconcilable with the Eighth Amendment's original meaning, and nothing in the common law supports it.

1

The Eighth Amendment prohibits "cruel and unusual punishments." As originally understood, that prohibition concerns cruel and unusual *methods* of punishment. *Grants Pass* v. *Johnson*, 603 U. S. 520, 541–543 (2024); accord, *Aldridge* v. *Commonwealth*, 2 Va. Cas. 447, 449–450 (1824) ("merely applicable to the modes of punishment"). Because capital punishment need not be cruel and has not "long fallen out of use," the "Constitution allows" it. *Bucklew* v. *Precythe*, 587 U. S. 119, 129–130 (2019).

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The concept of "cruel" punishments originally meant what it usually means now: "savage" or "barbarous" punishments that "give pain to others, in body or mind." N. Webster, An American Dictionary of the English Language (1828). Thus, punishments like crucifixion or immolation are "cruel," but death, by itself, is not. See *In re Kemmler*, 136 U. S. 436, 446 (1890). In England, capital punishment generally consisted in "being hanged by the neck till dead," 4 W. Blackstone, Commentaries on the Laws of England 370 (1769) (Blackstone), a method that often involved no pain if performed as intended, S. Banner, The Death Penalty: An American History 170 (2002). But for especially "atrocious crimes" such as high treason, English law contemplated enhanced punishments, including "embowelling alive, beheading, and quartering." 4 Blackstone 370. The cruelty of such punishments consisted in the intentional "superadd[ition]" of "terror, pain, or disgrace" to death. *Ibid.* By the founding, these enhanced death sentences were theoretically

still authorized, but they had "'dwindled away' and would for that reason have been 'unusual' in the sense that they were no longer 'regularly or customarily employed.'" *Baze* v. *Rees*, 553 U. S. 35, 97 (2008) (THOMAS, J., concurring in judgment).

Supporters of the Eighth Amendment were concerned that Congress, like Parliament before it, might enhance punishments with cruelty that had by the founding fallen into disuse. See *id.*, at 97–98. One speaker at the Massachusetts ratifying convention complained that the original Constitution "nowhere restrained" Congress "from inventing the most cruel and unheard-of punishments," leaving "*racks* and *gibbets*" as "amongst the most mild instruments of their discipline. 2 Debates on the Constitution 111 (J. Elliot ed., 2d ed. 1891). And Patrick Henry complained that, without a Bill of Rights, Congress could inflict "tortures, or cruel and barbarous punishment[s]." 3 *id.*, at 447–448.

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Atkins claims, including Smith's, have nothing to do with these concerns. Executing someone with a particular IQ does not implicate a "method" of execution at all. It certainly does not implicate a method that rises to the level of deliberate and unusual torture. It is therefore beyond the scope of the Eighth Amendment.

2

The only possible historical analogue to *Atkins*'s doctrine was a common-law protection that cannot justify it. At common law, the severely mentally retarded—whom the common law called "idiots"—could not be punished. 4 Blackstone 24–25. The common law protected such people from punishment because their disability is so severe that they lack "knowledge to distinguish between good and evil"—"[t]hey are forgiven for they know not what they do!" A. Highmore, Law of Idiocy and Lunacy 195 (1807) (Highmore). Idiots, said Hale, have "no possibility to understand, what is

forbidden by law to be done, or under what penalties." 1 M. Hale, Pleas of the Crown 34 (1736) (Hale).

In modern parlance, one had to be "severely" or "profoundly" mentally retarded to be a common-law idiot. *Penry*, 492 U. S., at 333. Psychiatrists recognize "four degrees of mental retardation: mild, moderate, severe, and profound." *Smith*, 213 So. 3d, at 248–249, and n. 3. "'Mild' mental retardation," *Atkins* explained, "is typically used to describe people with an IQ level of 50–55 to approximately 70." 536 U. S., at 308, n. 3. People within this category "know the difference between right and wrong and are competent to stand trial." *Id.*, at 318. "Moderate" describes those whose IQs are 35–40 to 50–55. *Smith*, 213 So. 3d, at 249, n. 3. "Severe" describes those whose IQs are 20–25 to 35–40. *Ibid.* And "profound" describes those whose IQs are below 20 or 25. *Ibid.* This Court has explained that common-law idiots generally had IQs around 25, making them severely or profoundly mentally retarded. See *Penry*, 492 U. S., at 333.

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The common law therefore provides no support for *Atkins* claims, as this case demonstrates. No one contends that Smith is a common-law idiot. He reads at an 11th-grade level. His IQ is above 70—above the threshold for mental retardation and about triple what is typical of idiots. And, even setting aside IQ entirely, there is no doubt that Smith is able "to distinguish between good and evil," Highmore 195, and that he is able to "understand . . . what is forbidden by law," 1 Hale 34. His own expert "found that . . . Smith knew right from wrong." ECF Doc. 135, p. 3.

* * *

Nothing in our history, from 1791 to 2002, suggests that there is anything unlawful about executing murderers now protected by *Atkins*—let alone one such as Smith who reads at an 11th-grade level and has never scored below 71 on a

single IQ test. We therefore must adhere "to the correct, original meaning" of the Eighth Amendment, not *Atkins*. *Gamble*, 587 U. S., at 712 (THOMAS, J., concurring).

B

Even under its modern approach to *stare decisis*, this Court has "'often'" concluded that precedents must be overruled. *Ramos* v. *Louisiana*, 590 U. S. 83, 116–122 (2020) (KAVANAUGH, J., concurring in part). *Atkins* satisfies the criteria the Court has recently relied on to overrule constitutional precedents. See *Ramos*, 590 U. S., at 120–122.

Atkins is egregiously wrong, unworkable, and has created no legitimate reliance interests. *Ramos*, 590 U. S., at 121–122. *Atkins* is egregiously wrong because it is irreconcilable with original meaning and was poorly reasoned from the start, as more recent Eighth Amendment precedents discrediting its methodology show.* See Part II–A, *supra*; *Atkins*, 536 U. S., at 321–328 (Rehnquist, C. J., dissenting); *id.*, at 337–354 (Scalia, J., dissenting). *Atkins* is also unworkable, as its progeny and this case demonstrate. See Part I, *supra*. Finally, prospective murderers who would argue that they are too unintelligent to be executed are not planning murders in "reliance" on this Court's Eighth Amendment jurisprudence. *Ramos*, 590 U. S., at 122 (opinion of KAVANAUGH, J.). Nor, if they were, would such a reliance interest be "legitimate." *Ibid.* *Stare decisis* is therefore no obstacle to restoring the original meaning of the Eighth

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*We recently rejected the premise that the Cruel and Unusual Punishments Clause prohibits all "excessive" punishments. See *Grants Pass* v. *Johnson*, 603 U. S. 520, 541–550 (2024); contra, *Atkins*, 536 U. S., at 311–312. And the Court has stopped using *Atkins*'s "evolving standards of decency" approach to determine the meaning of the Eighth Amendment. *Id.*, at 312. See *Grants Pass*, 603 U. S. 520; *United States* v. *Tsarnaev*, 595 U. S. 302 (2022); *Jones* v. *Mississippi*, 593 U. S. 98 (2021); *Barr* v. *Lee*, 591 U. S. 979 (2020) (*per curiam*); *Bucklew* v. *Precythe*, 587 U. S. 119 (2019); *Madison* v. *Alabama*, 586 U. S. 265 (2019); contra, *Atkins*, 536 U. S., at 311–312.

Amendment. See, *e. g.*, *Dobbs* v. *Jackson Women's Health Organization*, 597 U. S. 215, 263–290 (2022); *Ramos*, 590 U. S., at 105–109.

III

"Some of our most 'egregious' cases have been those in which we have granted relief based on an unfounded Eighth Amendment claim," and *Atkins* is certainly near the top of the list. *Glossip* v. *Gross*, 576 U. S. 863, 905–906 (2015) (THOMAS, J., concurring). *Atkins*'s rejection of "the historical meaning of the [Eighth] Amendmen[t]," see *Ramos*, 590 U. S., at 106, has denied the justice governments have given to murder victims from time immemorial, *Glossip*, 576 U. S., at 905–906 (THOMAS, J., concurring). And it degrades the mildly intellectually disabled by putting them "on a level with . . . infants, imbeciles, and domestic animals"—those who cannot "'have known better.'" C. S. Lewis, The Humanitarian Theory of Punishment, 13 Issues in Religion and Psychotherapy 147, 151 (1987); see *Atkins*, 536 U. S., at 318, 319–320. In a future case, the Court should overrule *Atkins* and restore "the Cruel and Unusual Punishments Clause's fixed meaning in resolving any challenge brought under it." *Grants Pass*, 603 U. S., at 562 (THOMAS, J., concurring). For now, I respectfully dissent.

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JUSTICE ALITO, with whom JUSTICE THOMAS joins, and with whom THE CHIEF JUSTICE and JUSTICE GORSUCH join as to Parts I, III, and IV, dissenting.

In *Atkins* v. *Virginia*, 536 U. S. 304 (2002), this Court held that the Eighth Amendment forbids the execution of defendants whom it described, using the standard terminology of the time, as "mentally retarded." *Atkins* did not define that term for Eighth Amendment purposes, and our subsequent decisions on the issue have spawned doctrinal ambiguity and numerous unanswered questions. See, *e. g.*, *Hall* v. *Florida*, 572 U. S. 701, 740–742 (2014) (ALITO, J., dissenting); *Moore* v. *Texas*, 581 U. S. 1, 28–33 (2017) (ROBERTS, C. J., dissenting);